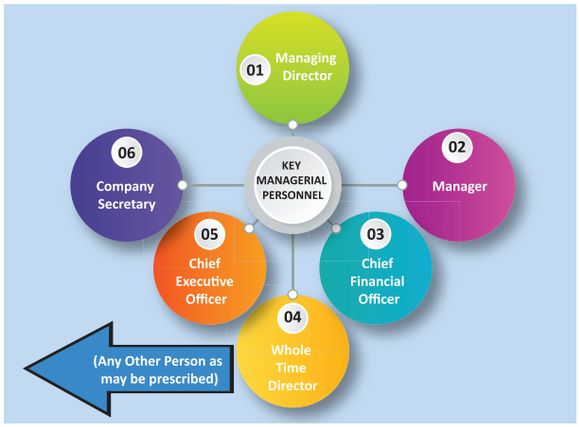
However in the following cases the directors may choose to delegate the work to someone else:

If it is permitted in the Companies Act or in the Articles of Association.

If the directors cannot perform certain work that demands specialized expertise, such work can be delegated in such a case.

27.02 Key- Managerial Personnel of a Company

Companies Act, 2013 (Act) has introduced many new concepts and Key Managerial Personnel (KMP) is one of them. KMP covers the traditional roles of managing director and whole time director and also includes some functional heads like Chief Financial Officer and Chief Executive Officer and Company Secretary.



WHO ARE THE KEY MANAGERIAL PERSONNEL ?

The definition of the term Key Managerial Personnel is contained in Section 2(51) of the Companies Act, 2013. This Section states:

(i) the Chief Executive Officer

(ii) the Managing Director or the Manager;

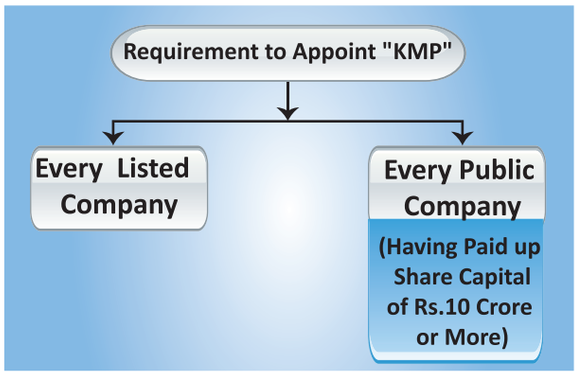
(iii) the Company Secretary;

(iv) the Whole-time Director;

(v) the Chief Financial Officer; and

(vi) such other officer as may be prescribed;

Following Companies are required to appoint KMP



27.03 Board of Directors

The Governing body of a Company incorporated under Companies Act called Board. It is a group of individuals called directors, elected to represent the views of shareholders of a public limited company and to manage the company affairs by establishing policies and implementing them to achieve the goal. They are empowered to take decisions on the major issues to lead the company in the right way. In General the Board is empowered to

(i) Set the Policies

(ii) Restructure the objectives

(iii) Evaluate the performance of Managing Director and Senior Executives.

(iv) Exercise overall Direction

(v) Adopt bylaws

(vi) Determine and pay the dividend

(vii) Issue additional shares.

In General, the Board is responsible for assisting the company in setting broad goals, supporting the management, ensuring the adequate resources available in the company and its utilisation.

COMPOSITION OF THE BOARD OF DIRECTORS:

a) General Optimum Combination:

Board of Directors shall have an optimum combination of executive and non-executive

12th Commerce Unit 10.indd 246 09-12-2021 12.00.26 PM